SUPREME COURT
STATE OF CONNECTICUT

MARLINE ADESOKAN, ET AL. S.C. 20753
vs.
TOWN OF BLOOMFIELD, ET AL.

APPELLEES' MOTION FOR LEAVE TO FILE SUPPLEMENTAL BRIEF

Pursuant to this Court's transfer order of October 20, 2022 and Practice Book §§ 60-1, 60-2, 60-3, and 66-2, the defendants/appellees, Town of Bloomfield (the "Town") and Officer Jonathan Sykes ("Sykes" or "Officer Sykes") (collectively, the "defendants" or "appellees"), respectfully move this Court for leave to file a supplemental brief to address the import of this Court's decision in *Daley v. Kashmanian*, 344 Conn. 464 (2022).

Counsel for the plaintiffs/appellants, John A. Sodipo, consents to this request.

I. BRIEF HISTORY OF THE CASE

By two-count Complaint, dated August 8, 2019, Ms. Marline Adesokan, personally and on behalf of her two minor children (collectively, the "plaintiffs"), brought an action against the defendants. Plaintiffs sought leave to amend and filed the operative, Second Revised Complaint on April 28, 2020.

On September 29, 2020, the defendants moved for summary judgment on all claims set forth in the operative complaint. On June 16, 2021, the trial court (Noble, J.) issued a Memorandum of Decision, concluding that the manner in which Officer Sykes' operated his emergency vehicle in response to an in-progress kidnapping, pursuant to General Statutes § 14-283, was a discretionary duty for which he was entitled to governmental immunity and to which no recognized exception applied.

Plaintiffs filed the instant appeal from the trial court's judgment on August 13, 2021. Following briefing, the Appellate Court heard oral argument on September 20, 2022. On October 20, 2022, this Court transferred the matter to itself pursuant to the provisions of Practice Book § 65-1. In its transfer notice, this Court directed any party desiring to file a substitute or supplemental brief to seek leave therefor, which the defendants respectfully now do.

II. SPECIFIC FACTS RELIED UPON

This matter was fully briefed in the Appellate Court proceeding on June 13, 2022. In their brief, defendants briefly addressed the Appellate Court's decision in *Daley v. Kashmanian*, 193 Conn. App. 171 (2019), primarily concerning the court's discussion of the recklessness claim. Thereafter, on August 30, 2022, this Court issued its decision in *Daley*, 344 Conn. 464 (2022), which further defined the parameters of Connecticut's common law governmental immunity, as codified in General Statutes § 52-557n. 344 Conn. at 485-87, 491-96, FN21, and FN22. Undoubtedly, *Kashmanian* substantially impacted the issues of this case before the Appellate Court, which was reflected in oral argument. Thus, this Court's decision in *Kashmanian* provided further guidance in defining the law of governmental immunity as well as clarifying this Court's previous decisions relating thereto. *Id.* at 493, FN22. Given *Kashmanian*'s significance to the issue before this Court, the defendants respectfully request an opportunity to file a supplemental brief regarding impact of *Kashmanian* on this case.

III. LEGAL GROUNDS RELIED UPON

The Connecticut Practice Book does not specifically address motions for permission to file supplemental briefs. See *State v. Armadore*, 338 Conn. 407, 420 (2021). Nonetheless, Practice Book § 60-2, does allow an appellate court "on its own motion or upon motion for any party … [to] order that a party for good cause shown may file a late appeal, petition for certification, brief or any other document unless the court lacks jurisdiction to allow the late filing …." (emphasis added). Likewise, pursuant to Practice Book § 60-3, this court may "[i]n the interest of expediting decision, or for other good cause shown, … suspend the requirements or provisions of any of these rules on motion for a party or its own motion and may order proceedings in accordance with its decision."

As identified in *Armadore*, "[a]though it would be an overstatement to suggest that supplemental briefing is routinely granted or ordered in appellate cases, such briefs are filed with some regularity, both before and after oral argument and upon both the court's order or a party's motion." 338 Conn. at 420 (citing *State v. White*, 334 Conn. 742, 769 n. 14 (2020) (granting parties permission to file supplemental briefs to address effect of decision released after initial briefs filed); *State v. McCleese*, 333 Conn. 378, 411 n. 15 (2019) (granting defendant's request to file supplemental brief to address effect of decision released after defendant filed initial brief); *Petrucelli v. Meriden*, 198 Conn. App.

838, 846 n. 7 (2020) (court sua sponte ordered supplemental briefing after oral argument); and *Nonhuman Rights Project, Inc. v. R.W. Commerford & Sons, Inc.*, 197 Conn. App. 353, 359 (granting petitioner's request for supplemental briefing), cert. denied, 335 Conn. 929 (2020)).

This matter is similar to those in which supplemental briefing has been allowed, as the intervening decision in *Kashmanian* not only further defines the law of governmental immunity but also clarifies the recent, previous governmental immunity decisions of this Court that were central to the parties' arguments at the Appellate Court. Thus, to properly frame and fully analyze the issues now before this Court, the defendants respectfully request permission to submit a supplemental brief.

WHEREFORE, defendants/appellees Town of Bloomfield and Jonathan Sykes respectfully move the Court for leave to file a supplemental brief.

Respectfully submitted,

DEFENDANTS/APPELLEES, TOWN OF
BLOOMFIELD, AND OFFICER JONATHAN SYKES

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October 26, 2022

CERTIFICATION OF WORD COUNT

The undersigned certifies that this motion complies with the word limit of Practice Book § 66-2(b) and contains 824 words, counted as that section directs.

CERTIFICATION OF SERVICE

The undersigned certifies that a copy of this motion has been delivered electronically on October 26, 2022 to each counsel of record listed below, in compliance with Practice Book § 62-7.

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/s/ Dennis M. Durao